

Form No. INC-13



Form language

☒ English

☐ Hindi

e-MOA (e-Memorandum of Association)

[Pursuant to sections 4 and 8 of the Companies Act, 2013 and rules made thereunder read with Schedule I]

Refer instruction kit for filing the form

*All fields marked in * are mandatory*

1 The name of the company is

HAMVATAN INTERNATIONAL
FOUNDATION

2 The registered office of the company will be situated in the State of

Jammu & Kashmir

3 (a) The objects to be pursued by the company on its incorporation are:

1. To work for up-liftment of weaker section of the society.
2. To carry out all activities on welfare basis without any discrimination on the basis of casts, creed or colour.
3. To promote sustainable livelihoods
4. Dissemination of useful knowledge, cultural education, maintenance of library or reading rooms for general use among the members and collection of natural history.
5. To assist the needy students, scholars, artisans, craftsmen and other industrial trained students in order to maintain highest traditions of workmanship and skills to rehabilitate them as self supporting individuals/institutes.
6. To promote, assist affiliate and collaborate with Government/Non-Government/Semi Government organizations, societies, Trusts, corporations and individuals of National and International level for the social work for the subjects mentioned here after or any other subject which the society may decide from time to time.
7. To organize or participate in course of study, research and seminars.
8. To promote and review the various classical and folk dances,

dramas, music, arts, crafts and xylographic works. 9. To print or publish or get printed or reprinted books on Indian culture, history, literature, philosophy, traditional science/knowledge, system of thought, exoteric language of others.

10. To arrange social functions/seminars/lectures/workshops/personality development camp/national integration camps etc. 11. To work for poor, needy and rural as well as urban Development. 12. To promote and empower the women folk for enhance their capacities through establishment and formation of SHGs, FCs, FPOs, CBOs and joint liability groups. 13. To execute, facilitate, bridge, run and manage employment generating avenues for unemployed educated youth, orphans, widows and destitute with the government and non government organizations. 14. To streamline the disabled persons with the departments of government and non government sector to ensure their assured wages. 15. To ensure the inclusion of, and to bring about equality of outcome for, those currently experiencing social exclusion and inequality. 16. To promote anti-oppressive, antisexist and anti-racist community work, with a particular emphasis on the inclusion of women. 17. To develop partnership and co-operation within the community sector. 18. To seek to positively influence the economic and social development policies of the State and its agencies 19. To seek to promote community work and influence policies at EU level. 20. To support the development of models and institutions of participatory democracy which will enable the participation of marginalized communities in planning,

decision making, implementation and evaluation at local, regional and national levels. 21. To support the recognition and inclusion of the community sector as a social partner in order to articulate the interests of those who experience social exclusion and inequality. 22. To promote a global perspective on justice issues and seek to make constructive links with the sector and development issues in the 'Third World'. 23. Study of political problems of hunger and malnutrition, population questions, disarmament, begging and other issues, which hamper the development of society at large. 24. To establish, run and manage old age Home and institutions for orphans, destitute, disabled and mentally retarded needy and poor men, women, boys and girls. 25. Participate in literacy campaigns, campaigns for nature conservation, preservation of culture and heritage.

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

1. True accounts shall be kept of all sums of money received and expended by the company and the matters in respect of which such receipts and expenditure take place, and of the property, credits and liabilities of the company; and, subject to any reasonable restrictions as to the time and manner of inspecting the same that may be imposed in accordance with the regulations of the company for the time being in force, the accounts shall be open to the inspection of the members. Once at least in every year, the accounts of the company shall be examined and the correctness of the balancesheet and the income and expenditure account ascertained by one or more properly qualified auditor or auditors.

2. If upon a winding up or dissolution of the company, there remains, after the satisfaction of all the debts and liabilities, any property whatsoever, the same shall not be distributed amongst the members of the company but shall be given or transferred to such other company having objects similar to the objects of this company, subject to such conditions as the Tribunal may impose, or may be sold and proceeds thereof credited to the Rehabilitation and Insolvency Fund formed under section 269 of the Act.

3. The Company can be amalgamated only with another company registered under section 8 of the Act and having similar objects.

the doing of all such other lawful things as considered necessary for the furtherance of the above objects:

Provided that the company shall not support with its funds, or endeavor to impose on, or procure to be observed by its members or others, any regulation or restriction which, as an object of the company, would make it a trade union.

4 *The objects of the company extend to the

Whole of INDIA

5 (i) The profits, if any, or other income and property of the company, when-so-ever derived, shall be applied, solely for the promotion of its objects as set forth in this memorandum.

(ii) No portion of the profits, other income or property aforesaid shall be paid or transferred, directly or indirectly, by way of dividend, bonus or otherwise by way of profit, to persons who, at any time are, or have been, members of the company or to any one or more of them or to any persons claiming through any one or more of them.

(iii) No remuneration or other benefit in money or money's worth shall be given by the company to any of its members, whether officers or members of the company or not, except payment of out-of-pocket expenses, reasonable and proper interest on money lent, or reasonable and proper rent on premises let to the company.

(iv) Nothing in this clause shall prevent the payment by the company in good faith of prudent remuneration to any of its officers or servants (not being members) or to any other person (not being member), in return for any services actually rendered to the company.

(v) Nothing in these clauses (iii) and (iv) shall prevent the payment by the company in good faith of prudent remuneration to any of its members in return for any services (not being services of a kind which are required to be rendered by a member), actually rendered to the company

6 No alteration shall be made to this memorandum of association or to the articles of association of the company which are for the time being in force, unless the alteration has been previously submitted to and approved by the Registrar.

7 The liability of the members is limited.

8. Table applicable to Section 8/ Part I Section 8 companyA - MEMORANDUM OF ASSOCIATION OF
A COMPANY LIMITED BY SHARES

Table A / B / C

(A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES/

B - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND NOT HAVING SHARE CAPITAL/

C - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND HAVING SHARE CAPITAL)

Each member, undertakes to contribute to the assets of the company in the event of its being wound up while he is a member or within one year afterwards, for the payment of the debts or liabilities of the company contracted before he ceases to be a member and of the costs, charges and expenses of winding up, and for adjustment of the rights of the contributories among themselves such amount as may be required not exceeding a sum of Rs *

The share capital of the company is 100000 rupees, divided into

10000	Equity Share	Shares of	10	Rupees each	
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9 True accounts shall be kept of all sums of money received and expended by the company and the matters in respect of which such receipts and expenditure take place, and of the property, credits and liabilities of the company; and, subject to any reasonable restrictions as to the time and manner of inspecting the same that may be imposed in accordance with the regulations of the company for the time being in force, the accounts shall be open to the inspection of the members. Once at least in every year, the accounts of the company shall be examined, and the correctness of the balance-sheet and the income and expenditure account ascertained by one or more properly qualified auditor or auditors

10 If upon a winding up or dissolution of the company, there remains, after the satisfaction of all the debts and liabilities, any property whatsoever, the same shall not be distributed amongst the members of the company but shall be given or transferred to such other company having objects similar to the objects of this company, subject to such conditions as the Tribunal may impose, or may be sold and proceeds thereof credited to the Rehabilitation and Insolvency Fund formed under Section 269 of the Act.

11 The Company can be amalgamated only with another company registered under section 8 of the Act and having similar objects.

☐ 12 We, the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association:

Subscriber Details

S. No.	*Name, Address, Description and Occupation	DIN / PAN / Passport number	No. of equity shares taken	DSC	Dated
1	MOHAMMAD ILYAS PANDITH S/o Hussain Pandith, Athoora Reshipora, Reshipora (Oth-ura), P.O Kreeri Baramula, Jammu & Kashmir 193198 India Business	F*U*P*9*9*	2000 Equity,0 Preference	MOHAMMAD ILYAS PANDITH Digitally signed by MOHAMMAD ILYAS PANDITH Date: 2025.09.23 10:25:38 +05'30'	22/09/2025
2	DANISH NISAR PANDITH S/o Nisar Ahmad Pandith, Authoora kreeri, Baramula, Jammu & Kashmir 193101 India Business	B*U*N*5*2*	8000 Equity,0 Preference	DANISH NISAR PANDITH Digitally signed by DANISH NISAR PANDITH Date: 2025.09.23 10:25:50 +05'30'	22/09/2025
Total shares taken			10000 Equity,0 Preference		

Signed before me					
Membership type of the witness	*Name of the witness	*Address, Description and Occupation	DIN / PAN / Passport number / Membership number	*DSC	Dated
FCS	SAGAR SAXENA	204, Second Floor, Ansal Sundaram, RDC, Raj Nagar, Ghaziabad,U.P. 201001 Practicing Company Secretary	1*9*6	SAGAR SAXENA Digitally signed by SAGAR SAXENA Date: 2025.09.23 11:00:37 +05:30'	22/09/2025